



SPONSOR: Rep. Hilovsky & Sen. Hoffner & Sen. Buckson
Reps. Snyder-Hall, Lambert; Sens. Wilson, Huxtable

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 193

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO THE DELAWARE MANUFACTURED HOME RELOCATION TRUST FUND.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 7042, Title 25 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and by redesignating accordingly:

3 § 7042. Delaware Manufactured Home Relocation Trust Fund [Expires July 1, 2029, pursuant to subsection (d) of
4 this section].

5 (e) The cap on the Trust Fund is \$15 million. The cap may be adjusted, eliminated, or reinstated by the Board at
6 any time, subject to the voting requirements under § 7041(c)(3) of this title.

7 (f) If the Trust Fund ceases to exist, the funds held at the time of dissolution must be liquidated as follows:

8 (1) Fifty percent of the total funds, on a per capita basis, to tenants of rented lots in manufactured home
9 communities in Delaware who have occupied the lots for at least the 12 months immediately prior to the time of
10 the dissolution.

11 (2) Fifty percent of the total funds to landlords owning rented lots at the time of dissolution, prorated on
12 the number of lots actually rented by the landlords for at least the 12 months immediately prior to the time of
13 dissolution.

14 (g) (1) a. The Board shall set a monthly assessment for deposit in the Trust Fund for each rented lot in a
15 manufactured home community. The Board may adjust, eliminate, or reinstate the assessment, and shall notify landlords
16 and tenants of each adjustment, elimination, or reinstatement under Board regulations.

17 b. One-half of the monthly assessment set under paragraph (g)(1)a. of this section is the obligation of the
18 tenant of rented lot, and ½ one-half of the assessment is the obligation of the landlord.

19 c. Beginning on ~~December 11, 2019,~~ [enactment date], the landlord portion of the monthly assessment is
20 credited ~~50 cents~~ \$1.50 for each rented lot.

21 d. Beginning on ~~December 11, 2019, 50 cents~~ [enactment date], \$1.50 of the tenant portion of the
22 monthly assessment for each rented lot is redirected to the Delaware Manufactured Home Owner Attorney Fund
23 under § 7046 of this title.

SYNOPSIS

In Chapter 70, Subchapter V of Title 25, the Manufactured Home Relocation Trust Fund was established. It is administered by a Board of Directors. The Board was directed to set a monthly assessment for deposit in the Trust Fund for each rented lot in a manufactured home community. This Act removes the cap of the Trust Fund, currently set at \$15 million. This Act also raises the amount of the tenant portion of the monthly assessment to be redirected to the Delaware Manufactured Home Owner Attorney Fund from 50 cents of the tenant portion to \$1.50. This Act takes effect on the date of enactment.